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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
14/622,732	02/13/2015	Suhaila MOHAMED	K1067.10014US02	3936
97149	7590	08/11/2017	EXAMINER	
Maschoff Brennan 1389 Center Drive, Suite 300 Park City, UT 84098			CLARK, AMY LYNN	
			ART UNIT	PAPER NUMBER
			1655	
			NOTIFICATION DATE	DELIVERY MODE
			08/11/2017	ELECTRONIC

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

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Office Action Summary	Application No. 14/622,732	Applicant(s) MOHAMED ET AL.	
	Examiner Amy L. Clark	Art Unit 1655	AIA (First Inventor to File) Status No

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTHS FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

- 1) ☒ Responsive to communication(s) filed on 5/10/2017.
☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on ____.
- 2a) ☐ This action is **FINAL**. 2b) ☒ This action is non-final.
- 3) ☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on ____; the restriction requirement and election have been incorporated into this action.
- 4) ☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims*

- 5) ☒ Claim(s) 1-4,6-10 and 16-19 is/are pending in the application.
5a) Of the above claim(s) ____ is/are withdrawn from consideration.
- 6) ☐ Claim(s) ____ is/are allowed.
- 7) ☒ Claim(s) 1-4,6-10 and 16-19 is/are rejected.
- 8) ☐ Claim(s) ____ is/are objected to.
- 9) ☐ Claim(s) ____ are subject to restriction and/or election requirement.

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to PPHfeedback@uspto.gov.

Application Papers

- 10) ☐ The specification is objected to by the Examiner.
- 11) ☐ The drawing(s) filed on ____ is/are: a) ☐ accepted or b) ☐ objected to by the Examiner.
Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).
Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

Priority under 35 U.S.C. § 119

- 12) ☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

Certified copies:

- a) ☐ All b) ☐ Some** c) ☐ None of the:
1. ☐ Certified copies of the priority documents have been received.
 2. ☐ Certified copies of the priority documents have been received in Application No. ____.
 3. ☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

** See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

- | | |
|---|---|
| 1) ☒ Notice of References Cited (PTO-892) | 3) ☐ Interview Summary (PTO-413)
Paper No(s)/Mail Date. ____. |
| 2) ☐ Information Disclosure Statement(s) (PTO/SB/08a and/or PTO/SB/08b)
Paper No(s)/Mail Date ____. | 4) ☐ Other: ____. |

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The present application is being examined under the pre-AIA first to invent provisions.

DETAILED ACTION

Continued Examination Under 37 CFR 1.114

A request for continued examination under 37 CFR 1.114, including the fee set forth in 37 CFR 1.17(e), was filed in this application after final rejection. Since this application is eligible for continued examination under 37 CFR 1.114, and the fee set forth in 37 CFR 1.17(e) has been timely paid, the finality of the previous Office action has been withdrawn pursuant to 37 CFR 1.114. Applicant's submission filed on 5/10/2017 has been entered.

Claims 1-4, 6-11 and 16-19 are currently under examination.

Claim Rejections - 35 USC § 102

Claim(s) 1-4 and 6-10 remain rejected under pre-AIA 35 U.S.C. 102(b) as being anticipated by Mudaliar (U*) (partially newly reapplied as necessitated by amendment).

Mudaliar teaches a composition comprising cocos nucifera leaf decoction obtained by combining cocos nucifera leaves with water (which reads on aqueous extract) for treating diabetes and that the composition is first formulated and is then orally administered (please note that Applicant's claim language "consisting essentially of" is being construed as open claim language because Applicant's originally filed specification does not provide explicit or implicit support for the language "consisting essentially of". Applicant's originally filed specification discloses "At least one of the preceding objects is met, in whole or in part, by the present invention, in which one of the embodiment of the present invention a composition with anti-diabetic property comprising aqueous or alcoholic extract from palm leaf (See paragraph 0021 of the PGPUB)" and "Another embodiment of the present invention involves a comestible and/or topical composition with anti-diabetic property comprising alcohol/aqueous extracts derived from the leaves of Palmae family using an appropriate extraction solvent (See paragraph 0027 of the PGPUB)". There are many other passages that use the same language but no other indications that the only active ingredient is the extract itself as part of a composition).

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Although Mudaliar does not teach that the extract includes biophenols, proteins, lipids, saccharides, minerals and small peptides, that the extract reduces blood sugar, inhibits oxidative stress, inhibits diabetic complications or that the extract inhibits specific complications in diabetic patients, the claimed functional properties are inherent to the extract taught by Mudaliar because the ingredients, the amounts of the ingredients, and the route of administration for the delivery of the ingredients taught by Mudaliar are one and the same as disclosed in the instantly claimed invention of Applicant. Thus, the extract taught by Mudaliar inherently has the same properties as claimed by Applicant.

Therefore, the reference anticipates the instantly claimed invention.

Claim Rejections - 35 USC § 103

Claims 1-4, 6-11 and 16-19 remain rejected under pre-AIA 35 U.S.C. 103(a) as being unpatentable over Mudaliar (U*), in view of "Nursing times" (V*).

The teachings of Mudaliar are set forth above and applied as before.

Mudaliar does not teach topical application of the composition.

"Nursing times" teaches that the form of administration of a drug is based upon the bioavailability of the drug and most effective route of administration. "Nursing times" teaches that topical administration is an effective form for locally administering medication.

It would have been obvious to modify the method by which the composition the composition is administered because at the time the invention was made, it was known that a composition comprising cocos nucifera leaf decoction is effective for treating diabetes and that medication can be either orally or topically administered as clearly taught by the above references.

Thus, an artisan of ordinary skill would reasonably expect that topically applying a composition comprising cocos nucifera leaf decoction would be more effective for treating diabetes and symptoms of diabetes by locally administering the medication to the desired site. This reasonable expectation of success would motivate the artisan to use a composition comprising cocos nucifera leaf decoction is effective for treating diabetes for treating diabetes and its symptoms by locally administering the formulation based upon the beneficial teachings of the above references.

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The result-effective adjustment of particular conventional working conditions (e.g., determining the most effective way to administer medication to a person in need) is deemed merely a matter of judicious selection and routine optimization which is well within the purview of the skilled artisan.

Based upon the beneficial teachings of the cited references, the skill of one of ordinary skill in the art, and absent evidence to the contrary, there would have been a reasonable expectation of success to result in the claimed invention.

Accordingly, the claimed invention was prima facie obvious to one of ordinary skill in the art at the time the invention was made, especially in the absence of evidence to the contrary.

Claims 1-4, 6-11 and 16-19 is/are rejected under pre-AIA 35 U.S.C. 103(a) as being unpatentable over Greifenstein (O, translation provided herein).

Greifenstein teaches a medicament for treating diabetes (See paragraph 0028 and abstract) comprising an extract of *cocos nucifera* (See paragraph 0006 and abstract), wherein the *cocos nucifera* extract can be from the leaves of *cocos nucifera* (See paragraph 0008) and can be extracted with ethanol or ethanol and water (See paragraph 0016). Greifenstein further teaches that the medicament can be in the form of a tablet, dragee, suppository or drops (See paragraph 0010). Grifenstein further teaches that the *cocos nucifera* extract can be administered in an amount of from 10% by weight to 20% by weight in addition to customary carriers, substances, auxiliaries and/or additives (See paragraph 0020)(please note that Applicant's claim language "consisting essentially of" is being construed as open claim language because Applicant's originally filed specification does not provide explicit or implicit support for the language "consisting essentially of". Applicant's originally filed specification discloses "At least one of the preceding objects is met, in whole or in part, by the present invention, in which one of the embodiment of the present invention a composition with anti-diabetic property comprising aqueous or alcoholic extract from palm leaf (See paragraph 0021 of the PGPUB)" and "Another embodiment of the present invention involves a comestible and/or topical composition with anti-diabetic property comprising alcohol/aqueous extracts derived from the leaves of *Palmae* family using an appropriate extraction solvent (See paragraph

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0027 of the PGPUB)". There are many other passages that use the same language but no other indications that the only active ingredient is the extract itself as part of a composition).

Although Greifenstein does not expressly teach that the extract includes biophenols, proteins, lipids, saccharides, minerals and small peptides, that the extract reduces blood sugar, inhibits oxidative stress, inhibits diabetic complications or that the extract inhibits specific complications in diabetic patients, the claimed functional properties are inherent to the extract taught by Greifenstein because the ingredients, the amounts of the ingredients, and the route of administration for the delivery of the ingredients taught by Greifenstein are one and the same as disclosed in the instantly claimed invention of Applicant. Thus, the extract taught by Greifenstein inherently has the same properties as claimed by Applicant.

It would have been obvious to use *cocos nucifera* leaves as the source material for ethanol or aqueous ethanol extraction and to administer the extract to a subject with diabetes because at the time the invention was made it was known that *cocos nucifera* leaf could be extracted with ethanol or aqueous ethanol for treating diabetes as clearly taught by Greifenstein.

Thus, an artisan of ordinary skill would reasonably expect that using *cocos nucifera* leaves extracted with ethanol or aqueous ethanol would be effective for treating diabetes. This reasonable expectation of success would motivate the artisan to use *cocos nucifera* leaves and to extract the *cocos nucifera* leaves with ethanol or aqueous ethanol for treating diabetes and its symptoms based upon the beneficial teachings of Greifenstein.

Moreover, it would have been merely a matter of judicious selection to one of ordinary skill in the art at the time the invention was made to modify the referenced composition because it would have been well in the purview of one of ordinary skill in the art practicing the invention to pick and choose an amount of an extract of *cocos nucifera* leaf extract to administer to a diabetic subject to treat diabetes. Thus, the claimed invention is no more than the routine optimization of a result effect variable.

Based upon the beneficial teachings of the cited references, the skill of one of ordinary skill in the art, and absent evidence to the contrary, there would have been a reasonable expectation of success to result in the claimed invention.

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Accordingly, the claimed invention was prima facie obvious to one of ordinary skill in the art at the time the invention was made, especially in the absence of evidence to the contrary.

Response to Arguments

Applicant's arguments have been fully considered but they are not persuasive.

Applicant argues that Applicant has amended the claims to preclude additional ingredients that are active from being part of the formulation and that Mudalair teaches a formulation containing many ingredients that are used for treating diabetes and that there is no evidence that the palm leaf extract is effective in treating diabetes. Applicant further argues that Mudalair requires much more than just a substance having an antidiabetic property. Applicant further argues that there is no evidence that administering palm leaf extract will have the instantly claimed effects of reducing blood sugar, inhibit diabetic oxidative stress, diabetic complications or the diseases of claim 9.

However, this is not found persuasive because Applicant's claim language "consisting essentially of" is being construed as open claim language because Applicant's originally filed specification does not provide explicit or implicit support for the language "consisting essentially of". Applicant's originally filed specification discloses "At least one of the preceding objects is met, in whole or in part, by the present invention, in which one of the embodiment of the present invention a composition with anti-diabetic property comprising aqueous or alcoholic extract from palm leaf (See paragraph 0021 of the PGPUB)" and "Another embodiment of the present invention involves a comestible and/or topical composition with anti-diabetic property comprising alcohol/aqueous extracts derived from the leaves of Palmae family using an appropriate extraction solvent (See paragraph 0027 of the PGPUB)". There are many other passages that use the same language but no other indications that the only active ingredient is the extract itself as part of a composition. Mudalair clearly teaches that a composition comprising a water extract of cocos nucifera leaf is effective at treating diabetes. Therefore, administering the formulation of Mudalair and the extract of cocos nucifera leaf would be expected to effectively treat diabetes and its symptoms/conditions related to diabetes. Therefore, the rejection is maintained for the reasons of record and the reasons set forth herein.

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Applicant argues that the invention is not obvious over Mudalair in view of nursing times because the references do not teach the instantly claimed invention.

However, this is not found persuasive because a composition comprising cocos nucifera leaf extract is known to be useful for treating diabetes and formulation that is oral into a topical form is well known in the art to be effective for administering a composition for faster absorption. Therefore, the rejection is maintained for the reasons of record and for the reasons set forth above.

Conclusion

No claims are allowed.

Any inquiry concerning this communication or earlier communications from the examiner should be directed to Amy L. Clark whose telephone number is (571)272-1310. The examiner can normally be reached on Monday to Friday 7 am to 3:30 pm.

Examiner interviews are available via telephone, in-person, and video conferencing using a USPTO supplied web-based collaboration tool. To schedule an interview, applicant is encouraged to use the USPTO Automated Interview Request (AIR) at <http://www.uspto.gov/interviewpractice>.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Terry McKelvey can be reached on (571)272-0775. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see <http://pair-direct.uspto.gov>. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

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/Amy L Clark/

Primary Examiner, Art Unit 1655